

preliminary remarks upon the subject of the Court's (a) *jurisdiction* over charities established by *charter*.

[(a) By 36 & 37 Vict. c. 66, s. 34, signed to the Chancery Division of causes and matters for the execution the High Court of Justice.]
of Charitable Trusts, are to be as-

56 Am. Rep. 588; so to one "to use and apply the same for such religious and charitable purposes and objects as will in his judgment best promote the cause of Christ;" *Maught v. Getzendanner*, 65 Md. 527; 57 Am. Rep. 352; *Dashicell v. Atty. Gen.* 5 H. & J. 303; *Church v. Smith*, 56 Md. 397. To build a free school house and extend the education of poor children is void; *Stone-street v. Doyle*, 75 Va. 356; *Baptist Asso. v. Hart*, 4 Wheat. 4; and a home for educational purposes and society for christianizing the African race; *Rizer v. Perry*, 58 Md. 112; *Nichols v. Allen*, 130 Mass. 211; *Prichard v. Thompson*, 95 N. Y. 76.

A misnomer in referring to a corporation will not defeat the charity; *Barnum v. Mayor of Baltimore*, 62 Md. 275; 50 Am. Rep. 219; *McAllister v. McAllister*, 46 Vt. 272; *Chapin v. School Dist.* 35 N. H. 445; *Lefevre v. Lefevre*, 59 N. Y. 434; *Minot v. Boston Asylum*, 7 Met. 416. A gift to a charitable institution to be incorporated is valid; *Universalist Soc. v. Kimball*, 34 Me. 424; *Sewall v. Cargill*, 15 Me. 414. A bequest "equally to the authorized agents of the Home and Foreign Missionary Society and to aid in propagating the holy religion of Jesus Christ" is valid; *Hinckley v. Thatcher*, 139 Mass. 477; 52 Am. Rep. 719; *American Tract Soc. v. DeWitt*, 9 Allen, 447; *Tilton v. American Bible Soc.* 60 N. H. 377; *Dunham v. Averill*, 45 Conn. 61. To clergymen "to be expended in the education of children, in such way and manner as they may deem best and the majority approve"; *Grimes' Exrs. v. Harmon*, 35 Ind. 198; *White v. Fisk*, 22 Conn. 31; *Downing v. Marshall*, 23 N. Y. 366. To be distributed "among such Roman Catholic charities, institutions, schools or churches in the city of New York" as the executors may select; this is valid, there being corporations answering the description and empowered to take; *Power v. Cassidy*, 79 N. Y. 602; 35 Am. Rep. 559; the beneficiary need not be described by name, it is enough if the beneficiary can be ascertained; *Holmes v. Mead*, 52 N. Y. 332. There must be an ascertainable beneficiary; *Wheeler v. Smith*, 9 How. 55; *Sherwood v. American Bible Soc.* 1 Keyes, 561; *O'Hara v. Dudley*, 95 N. Y. 403; 47 Am. Rep. 53; *Beckman v. Bonsor*, 23 N. Y. 298; 80 Am. Dec. 269. To executors to distribute the residue among relatives and for beneficial objects in such manner as they deem best is valid; *Goodale v. Mooney*, 60 N. H. 528; 49 Am. Rep. 334. Bequest to an institution to be incorporated for respectable and indigent women, is valid; *Coit v. Comstock*, 51 Conn. 352; 50 Am. Rep. 29; *Church v. Mott*, 7 Paige Ch. 77. If possible to reduce such a devise to a certainty it will be done; *Brewster v. McCall*, 15 Conn. 292; *White v. Howard*, 38 Conn. 306; for the support of young men preparing for the ministry is void unless power is given to trustees to make a selection; *White v. Fisk*, 22 Conn. 31; *Washburn v. Sewall*, 9 Met. 280; *Fellows v. Miner*, 119 Mass. 541. There must be a clear distinction noticed between a declaration of a gift and its purposes and the mode of administration; *City of Phila. v. Girard's Heirs*, 45 Pa. St. 9; 84 Am. Dec. 470. A devise to "a public seminary" is a valid charity; *Curling's Admrs. v. Curling's Heirs*, 8 Dana, 38; so is a bequest to a church to be expended yearly for bread for the poor;